

HOUSE No. 2130

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to independent contractors.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/15/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>

HOUSE No. 2130

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 2130) of Bradley H. Jones, Jr. and others relative to independent contractors. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1902 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to independent contractors.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 148B of chapter 149 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking out paragraph (a) and inserting in place thereof the
3 following new paragraph:-

4 (a) For the purpose of this chapter and chapter 151, an individual performing any service,
5 except as authorized under this chapter, shall be considered to be an employee under those
6 chapters unless:- (1) the individual is free from control and direction in connection with the
7 performance of the service, both under his contract for the performance of service and in fact;
8 and (2) the service is performed outside the usual course of the business of the employer; or, (3)
9 the individual is customarily engaged in an independently established trade, occupation,
10 profession or business of the same nature as that involved in the service performed.